

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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GILBERTO VARGAS,

Plaintiff,

-against-

Detective EDDIE MARTINS, Shield No. 5731;
Detective BRIAN TURNER, Shield No. 2662;
Detective PAUL MARCONI, Shield No. 14831;
Detective JOHN RIVERA, Shield No. 452;
Detective MIKE CIVIL, Shield No. 02114;
Detective HARUN MIAH, Shield No. 2133; and
JOHN and JANE DOE 1 through 10, individually
and in their official capacities (the names John and
Jane Doe being fictitious, as the true names are
presently unknown),

Defendants.
-----X

**FIRST AMENDED
COMPLAINT**

Jury Trial Demanded

15 CV 5040 (LDH) (RML)

NATURE OF THE ACTION

1. This is an action to recover money damages arising out of the violation of plaintiff's rights under the Constitution.

JURISDICTION AND VENUE

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourteenth Amendment to the Constitution of the United States.

3. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331 and 1343 and 1367(a).

4. Venue is proper in this district pursuant to 28 U.S.C. §§ 1391 (b) and (c).

JURY DEMAND

5. Plaintiff demands a trial by jury in this action.

PARTIES

6. Plaintiff Gilberto Vargas is a resident of Kings County in the City and State of New York.

7. The individual defendants, Detectives Eddie Martins, Shield No. 5731; Brian Turner, Shield No. 2662; Paul Marconi, Shield No. 14831; John Rivera, Shield No. 452; Mike Civil, Shield No. 02114; and Harun Miah, Shield No. 2133 are officers, employees and agents of the NYPD. The individual defendants are sued in their individual and official capacities.

8. At all times relevant defendants John and Jane Doe 1 through 10 were police officers, detectives or supervisors employed by the NYPD. Plaintiff does not know the real names and shield numbers of defendants John and Jane Doe 1 through 10.

9. At all times relevant herein, defendants John and Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York and the

NYPD. Defendants John and Jane Doe 1 through 10 are sued in their individual and official capacities.

10. At all times relevant herein, all individual defendants were acting under color of state law.

STATEMENT OF FACTS

11. Mr. Vargas is an insulin-dependent Type 1 diabetic.

12. As of July 2015, Mr. Vargas's insulin regimen consisted of four self-administered injections per day: a 10-unit shot taken before breakfast, lunch and dinner, along with a 40-unit shot taken before bed that would last overnight.

13. As of July 2015, to administer his medication, Mr. Vargas always carried two insulin injection pens with him.

14. At approximately 8:00 p.m. on July 24, 2015, Mr. Vargas was arrested by several of the individual defendants, including, upon information and belief, defendants Martins, Marconi, Civil and Rivera.

15. At the time of his arrest, Mr. Vargas showed the officers the two insulin pens and explained that he had Type 1 diabetes and needed his medication to avoid serious diabetic complications.

16. At the time of his arrest, Mr. Vargas was due to give himself two more shots that day, a 10-unit shot before dinner and a 40-unit shot before bed.

17. In response to Mr. Vargas's statements, one of the defendant officers, believed to be defendant Rivera, confiscated Mr. Vargas's insulin pens and, upon information and belief, put them in an envelope.

18. Mr. Vargas was handcuffed and put in a police van.

19. Inside the van, Mr. Vargas told officers, believed to be defendants Civil and Rivera, in sum and substance, I need my medication.

20. One of the officers, believed to be defendant Rivera, responded, in sum and substance, you'll get it at the precinct.

21. Mr. Vargas was then driven around while the officers made an additional arrest and then taken to the 60th Precinct.

22. When he was brought into the 60th Precinct, Mr. Vargas immediately told John Doe 1, the as-yet unidentified desk sergeant (believed, according to the roll call, to be Sergeant Rajesh Lalwani, Shield No. 5427), in sum and substance, that he was diabetic and needed his medication to avoid becoming seriously ill.

23. The desk sergeant responded, in sum and substance, you'll get it later.

24. Mr. Vargas, now experiencing symptoms including, *inter alia*, dry mouth, incontinence, dizziness and blurred vision, told an officer that he was suffering from diabetic complications and continued to request access to medication and a bathroom as he was placed in a holding cell.

25. Mr. Vargas continued to request medication from the officer who fingerprinted him, believed to be either defendant Rivera or defendant Civil, as plaintiff's symptoms grew more severe.

26. Records indicate that Mr. Vargas was held inside the 60th Precinct for approximately five hours and forty minutes without access to insulin, despite his repeated requests.

27. By the time plaintiff was transported to Brooklyn Central Booking by defendants Turner and Miah at approximately 1:49 a.m., Mr. Vargas had become dramatically ill from diabetic complications.

28. The officers who drove plaintiff to Central Booking knew he was seriously ill and needed medication but took no action.

29. When plaintiff arrived at Central Booking he threw up twice and suffered from diarrhea.

30. Mr. Vargas continued to plead with unidentified defendant officers at Central Booking for medicine, but his pleas were ignored.

31. According to defendants' own records, Mr. Vargas was kept at Central Booking for at least two hours and forty minutes without receiving treatment, as his condition further deteriorated.

32. Mr. Vargas was ultimately taken to Bellevue Hospital at approximately

4:29 a.m., and was first triaged at approximately 5:16 a.m.

33. Mr. Vargas's initial glucose readings exceeded 450, an extremely dangerous level associated with severe symptoms.

34. At Bellevue, Mr. Vargas was given ten units of insulin (40-50 less units than were required under plaintiff's prescribed dosage).

35. At approximately 9:52 a.m., Mr. Vargas was returned to central booking.

36. Mr. Vargas was still suffering from and complaining to a number of unidentified defendants of his continuing symptoms of high glucose levels and urgent need for medical care.

37. Even though defendants were aware that plaintiff was still sick and urgently needed medication and medical attention, he was kept at central booking without medication for over eight hours, until he was finally brought before a judge and released at approximately 6:00 p.m.

38. Mr. Vargas suffered severe pain and other acute symptoms while he was at central booking.

39. Mr. Vargas left the courthouse very sick with complications and required subsequent medical intervention.

FIRST CLAIM
Deliberate Indifference to Medical Needs

40. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

41. The individual defendants were aware of a risk to plaintiff's safety and a need for medical care and failed to act in deliberate indifference to plaintiff's needs.

42. Accordingly, defendants violated the Fourteenth Amendment because they acted with deliberate indifference to plaintiff's medical needs and safety.

43. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SECOND CLAIM
Failure to Intervene

44. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

45. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

46. Accordingly, the defendants who failed to intervene violated the Fourteenth Amendment.

47. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against the individual defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988; and
- (d) Such other and further relief as this Court deems just and proper.

Dated: May 9, 2017
New York, New York

HARVIS & FETT LLP



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New York, New York 10007
(212) 323-6880
gharvis@civilrights.nyc

Attorneys for plaintiff

Signature of Clerk or Deputy Clerk

Civil Action No. _____

PROOF OF SERVICE*(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))*

This summons for *(name of individual and title, if any)* _____
 was received by me on *(date)* _____ .

☐ I personally served the summons on the individual at *(place)* _____
 _____ on *(date)* _____ ; or

☐ I left the summons at the individual's residence or usual place of abode with *(name)* _____
 _____ , a person of suitable age and discretion who resides there,
 on *(date)* _____ , and mailed a copy to the individual's last known address; or

☐ I served the summons on *(name of individual)* _____ , who is
 designated by law to accept service of process on behalf of *(name of organization)* _____
 _____ on *(date)* _____ ; or

☐ I returned the summons unexecuted because _____ ; or

☐ Other *(specify)*: _____ .

My fees are \$ _____ for travel and \$ _____ for services, for a total of \$ _____ .

I declare under penalty of perjury that this information is true.

Date: _____

Server's signature

Printed name and title

Server's address

Additional information regarding attempted service, etc:

Signature of Clerk or Deputy Clerk

Civil Action No. _____

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_____, a person of suitable age and discretion who resides there,
on *(date)* _____, and mailed a copy to the individual's last known address; or

☐ I served the summons on *(name of individual)* _____, who is
designated by law to accept service of process on behalf of *(name of organization)* _____
_____ on *(date)* _____; or

☐ I returned the summons unexecuted because _____; or

☐ Other *(specify)*: _____.

My fees are \$ _____ for travel and \$ _____ for services, for a total of \$ _____.

I declare under penalty of perjury that this information is true.

Date: _____

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I declare under penalty of perjury that this information is true.

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Printed name and title

Server's address

Additional information regarding attempted service, etc: